

M/s S.K. Rice Mill v. Aditya Pandey

High Court of Judicature at Allahabad · Single Bench · 5 May 2025 · 2025:AHC:71442 · Contempt Application (Civil) No. 1285 of 2025 · **Contempt disposed of; EE's Supply Code 4(i)/(ii) refusal held not disobedience of the writ directing connection.**

HEADNOTE

Contempt of a writ directing an electricity connection within four weeks is not made out where the licensee's later speaking order refuses the connection under Supply Code paragraphs 4(i) and 4(ii) (dues on the applicant's brother's connection on the same land): the writ-court concession was only to give connection in accordance with law. Merits of that refusal cannot be examined in contempt; the applicant may challenge it before the appropriate authority. Application disposed of; notice discharged.

FACTUAL SUMMARY

M/s S.K. Rice Mill, through proprietor Santosh Kumar Mishra, obtained a 23 January 2025 order in Writ-C No. 40648 of 2024 directing the Executive Engineer to give an electricity connection within four weeks after PuVVNL's counsel stated that a connection would be given. Alleging non-compliance, the mill filed this contempt against Sri Aditya Pandey. The In-charge EE, PuVVNL, Gopiganj, Bhadohi later filed an affidavit that an order of 30 April 2025 had refused the connection under paragraphs 4(i) and 4(ii) of the Electricity Supply Code, 2005, citing dues on the applicant's brother's connection on the land of the mill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4(i)

contempt of connection direction; dues on brother's connection on same land

HOLDING

A writ-court direction to give an electricity connection within four weeks, following counsel's statement that a connection would be given, is only a direction to provide connection in accordance with law. An Executive Engineer's later speaking order refusing the connection under paragraphs 4(i) and 4(ii) of the Electricity Supply Code, 2005 — because dues stood against the applicant's brother's connection on the land on which the mill is established — is not willful disobedience of that writ. Alleged illegalities in the refusal go to merits and cannot be considered in contempt; the applicant has the remedy of challenging the order before the appropriate authority. Application disposed of; notice discharged.

FLAG Order recites 'paragraph nos. 4 (i) and 4 (ii)' of the Electricity Supply Code, 2005 without identifying the parent clause; not silently mapped to 4.3/4.4.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER PARAGRAPHS 4(I) AND 4(II) OF THE SUPPLY CODE ACTUALLY PROHIBIT THE CONNECTION.

NOT DECIDED — WHETHER DUES ON THE BROTHER'S CONNECTION ON THE SAME LAND BIND THE APPLICANT-PROPRIETOR.

NOT DECIDED — ILLEGALITIES AND LEGAL ERRORS ALLEGED IN THE 30 APRIL 2025 REFUSAL ORDER.

